



Notification Waiver Determination

Kiwa – CSA Group

Acquisition	Kiwa Holding Canada Inc. (Kiwa) applied for a notification waiver in respect of its proposed acquisition of 100% of the share capital in CSA Group Testing & Certification Inc. (CSA Group), as described in the transaction documents provided as part of the application (the Acquisition).
Determination	The Australian Competition and Consumer Commission has determined under section 51ABV(1)(a) of the <i>Competition and Consumer Act 2010</i> (Cth) that the Acquisition is not required to be notified.
Date of determination	2 October 2026

Parties to the Acquisition	The acquirer, Kiwa, is a wholly owned subsidiary of Kiwa N.V., a global testing, inspection and certification (TIC) company for clients across a broad range of industries. In Australia, Kiwa N.V. has four business lines, providing testing for mining, civil construction and infrastructure services, construction materials testing, geotechnical services consulting, and International Organization for Standardization (ISO) certification. Kiwa N.V. is wholly owned by SHV Holdings, a Dutch conglomerate. The target, CSA Group, is a global TIC company based in Canada. It has a limited presence in Australia, in factory certification.
Explanation for determination	In making this notification waiver determination, the Australian Competition and Consumer Commission (the ACCC) has considered the information provided with the notification waiver application and had regard to the factors in section 51ABV(2)(b) of the <i>Competition and Consumer Act 2010</i> (Cth) (the Act). Based on the information provided in the application, the ACCC considers that the Acquisition is unlikely to give rise to any material lessening of competition given there is no horizontal overlap between Kiwa and CSA Group in the supply of factory auditing services in Australia. In these circumstances, the ACCC does not consider it necessary to reach a concluded view on the likelihood of the notification thresholds being met. Given that material competition concerns are unlikely to arise, the ACCC has determined that the Acquisition is not required to be notified. The ACCC considers that the determination is consistent with the object of the Act and the interests of consumers in promoting competition.

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	For more information about the ACCC's approach to considering notification waiver applications and to assessing competition effects more generally, see the ACCC's guidance on notification waivers and merger assessment guidelines .
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**Determination made by Commissioner Williams pursuant to a delegation under section 25(1)
of the Act**